

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 9/22/2026 .
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Rosa Soto v. Mazen Al-Hindi**
Superior Court Case No. 25CECG01863

Hearing Date: September 24, 2026 (Dept. 503)

Motion: Plaintiffs' Motion to Enforce Settlement

Tentative Ruling:

To grant plaintiffs' Motion to enforce settlement. Plaintiffs are directed to submit to this court, within 10 days of service of the minute order adopting this tentative ruling, a proposed judgment.

Plaintiffs are also currently entitled to \$2,000 in attorney fees.

Explanation:

Plaintiffs Rosa Soto ("Soto") and Yasaman Lajevardi ("Lajevardi") (collectively, "plaintiffs") make this motion to enforce settlement, arguing that defendants Allure Medical Spa, A Medical Corporation; Silver Care Medical Management, Inc.; Kailo Health, Inc.; Al-Hindi Properties LLC; Mazen Al-Hindi; Leila Al-Hindi; Dina Ibrahim; and Hipolito Mariano (collectively, "Defendants") are in breach of their Settlement Agreements. Each plaintiff entered separate fully executed Confidential Settlement and General Release Agreements with Defendants on November 3, 2025 (collectively, the "Settlement Agreements"). (Shoar Decl., ¶12, Exs. A & B.)

Under each Settlement Agreement, Defendants agreed to pay each respective Plaintiff a total of \$135,000.00, structured as follows:

- First Payment (due within 30 days of the Effective Date): Two checks totaling \$100,000.00.
- Second Payment (due within 120 days of the Effective Date): Two checks totaling \$35,000.

Defendants remitted the first installment payments under both Settlement Agreements. The second and final installment payments under both Settlement Agreements were due within 120 days of the Effective Date, on or before approximately March 3, 2026. Defendants requested an extension to pay the second tranche on April 10, 2026. However, to date, the second tranche has not been paid. (Shoar Decl., ¶¶ 4-7.)

Plaintiffs seek to enforce settlement as follows:

- a) Under the Soto Settlement Agreement: (1) \$20,075.96 payable to Rosa Soto; and (2) \$14,924.04 payable to Bruno & Associates, for a total second installment of \$35,000.00.

- b) Under the Lajevardi Settlement Agreement: (1) \$20,075.96 payable to Yasaman Lajevardi; and (2) \$14,924.04 payable to Bruno & Associates, for a total second installment of \$35,000.00.

The combined amount owed as the second installment across both Settlement Agreements is \$70,000.00.

The motion is unopposed.

Enforcement of settlement agreements is governed by Code of Civil Procedure section 664.6. This statute provides, in relevant part:

If the parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc. § 664.6(a).)

The Court is empowered under this section to resolve reasonable disputes over the terms of a settlement. (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 795.) The Court does not insert provisions into the parties' agreement but applies the rules of contractual interpretation to interpretation of the settlement. (*Id.* at 792.) When extrinsic evidence is necessary, the Court may decide the motion on declarations alone. (*Richardson v. Richardson* (1986) 180 Cal.App.3d 91, 97.)

The Court considers Defendants' non-opposition to be a concession to plaintiffs' motion on the merits. Accordingly, judgment shall enter against defendants, jointly and severally, in the amount of \$20,075.96 to Soto and \$14,924.04 to Bruno & Associates. Attorney's fees of \$2,000 are awarded to plaintiff, as no reply and appearance were required. (See Shoar Decl., ¶ 10.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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